

Tentative Rulings for Department 502

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Tentative Ruling

Re: **Fuller v. Roxberg et al.**
Superior Court Case No. 25CECG01221

Hearing Date: August 4, 2026 (Dept. 502)

Motion: by Plaintiff Lena Fuller for Trial Preference

Tentative Ruling:

To deny, without prejudice. (Code Civ. Proc., § 36, subd. (a), (e).)

Explanation:

Plaintiff Lena Fuller ("Plaintiff") seeks preferential setting of trial under Code of Civil Procedure section 36, subdivision (a). However, the moving papers were filed on July 23, 2026, for hearing on August 4, 2026. The papers are therefore untimely. (Code Civ. Proc., § 1005, subd. (b) ["Unless otherwise ordered or specifically provided by law, all moving and supporting papers **shall** be served and **filed** at least 16 court days before the hearing"]; Cal. Rules of Ct., rule 3.1300(a) ["Unless otherwise ordered or specifically provided by law, all moving and supporting papers **must** be served and **filed** in accordance with Code of Civil Procedure section 1005, and, when applicable, the statutes and rules providing for electronic filing and service."] [emphasis added])

Even had papers been timely filed, Plaintiff fails to demonstrate a sufficient basis for the relief sought. Among other requirements, Plaintiff must show that her health is such that preference is necessary to prevent prejudicing her interest in the litigation. (Code Civ. Proc., § 36, subd. (a).) Plaintiff submits that she has suffered two heart attacks over the past several months and has been diagnosed with arrhythmia. (Fuller Decl., ¶ 23.) This is, unfortunately, a common condition with old age. Nothing about this statement, or Plaintiff's statement that she has thyroid and arthritis issues, and takes blood thinners demonstrate a prejudice if preference is not granted. (*Id.*, ¶ 24.) Plaintiff speculates, without the aid of any medical opinion, that her advanced age could lead to another heart attack. Nothing suggests that Plaintiff's present medical care, if any, is or will be insufficient to address these medical issues common to general old age. In sum, the moving papers are factually devoid of any basis to find prejudice. The motion is denied, but without prejudice in the event that circumstances change.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

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